

**Court No. - 3**

**Case :-** WRIT - C No. - 11018 of 2013

**Petitioner :-** M/S Rathi Super Steel Ltd.

**Respondent :-** Paschimanchal Vidyut Vitran Nigam Ltd. And Another

**Petitioner Counsel :-** Mayank Agrawal

**Respondent Counsel :-** Nripendra Mishra

**Hon'ble Laxmi Kanta Mohapatra,J.**

**Hon'ble Mrs. Sunita Agarwal,J.**

Heard Sri Mayank Agrawal, learned counsel for the petitioner and Sri Nripendra Mishra, learned counsel for the respondents.

The petitioner, in this writ petition, assails several provisional bills on technical grounds.

It is submitted by Sri Mayank Agrawal, learned counsel for the petitioner that the respondents have not adhered to clause 6.1 (g) and 4.36(a) of the U.P. Electricity Supply Code, 2005. He drew attention of the Court to the above clause and submitted that 15 days is required to be given for payment of the bills. He further submits that the petitioner is ready to deposit the bills, if 15 days' time is given to deposit the amount.

Sri Nripendra Mishra, learned counsel appearing for respondents submits that if the bill was received by the petitioner on 27.2.2013, the writ petition could not have been filed on 26.2.2013. Therefore, the bill must have been received by the petitioner much prior to 26.2.2013.

We do not intend to enter into the disputed questions of fact since the petitioner is willing to deposit the entire bill amount by 15.3.2013.

We, therefore, dispose of the writ petition directing that if the petitioner does not deposit the entire bill amount raised on 27.2.2013 by 15.3.2013, the respondents shall be free to take such action as permissible under law. Hence effort shall be made by the respondents to adhere to aforesaid two provisions and raise bills.

**Order Date :-** 1.3.2013

P.P.